HILCHOT SEFIRAT HAOMER AND SHAVUOT — SHULHAN ARUKH

Counting the Omer: The Misvah, Its Source & When to Count

Sefirat HaOmer — Siman 489

Introduction — What Is the Omer?

The Sacrifice of the Omer

On the night after Pesach (the 16th of Nisan) — in Temple times there was only one day of Pesach — the following procedure took place:

Night of the 16th: The barley was harvested (cut) in a public ceremony. This was done emphatically and repeated three times to make clear that "mimacharat ha-Shabbat" means the night after Pesach — not Saturday night, as the Tzedukim (Sadducees) claimed. This is the origin of the declaration some communities recite on the first night of counting.

During the night: The barley was ground into flour.

Morning of the 16th (first day of Chol HaMoed): The ground barley was brought to the Kohen. The Kohen performed tenufah (waving) of the Omer, then took a kometz (three fingers' worth) and burned it on the altar.

From that moment: It became permitted to eat from the new produce (chadash) of that year. Before the Omer sacrifice, there is a Torah prohibition against eating new harvest grain. This prohibition still applies today (Se'if 10 discusses this).

Why Is It Called "Omer"?

The Torah says: "ve-ha'Omer asirit ha-eifah hu" (Beshalach) — an Omer is a measurement, one-tenth of an eifah. The amount of barley waved and sacrificed was an Omer, and the name stuck.

The Mitzvah of Counting

The Torah (Emor): "U-sefartem lachem mimacharat ha-Shabbat, mi-yom havi'achem et omer ha-tenufah, sheva shabbatot temimot tiheyenah" — Count from the day you bring the Omer offering, seven complete weeks.

So on the night of the 16th — the same night the barley was harvested — we begin counting. This continues for 49 nights until Shavuot.

The Major Machloket: Is Counting the Omer De'oraita or De-rabbanan Nowadays?

Since we no longer have the Beit HaMikdash and therefore no Omer sacrifice, is the counting still a Torah obligation?

Opinion	Ruling	Reasoning
The Rosh and Ran (majority of Rishonim)	De-rabbanan nowadays	The Torah says "u-sefartem lachem mi-yom havi'achem et omer ha-tenufah" — count from when you bring the Omer. Counting and sacrifice are **intrinsically linked**. No sacrifice = no Torah-level counting.
The Rambam (minority, but it's the Rambam)	De'oraita even nowadays	The Torah is telling you **when** to count, not linking the two mitzvot. They begin on the same night but are independent. No sacrifice doesn't affect the counting obligation.

The Shulchan Aruch (Se'if 2): Rules me'ikar ha-din like the majority — Sefirat HaOmer is **de-rabbanan** nowadays.

Why Does This Matter?

The biggest practical difference is **timing**:

If De'oraita (Rambam)	If De-rabbanan (Rosh/Ran)
Must count only after **nightfall** (tzeit ha-kochavim) — just like all Torah mitzvot done at night	Can count already from **sunset** (bein ha-shmashot) — safek de-rabbanan le-kula

Other differences arise throughout the Shulchan Aruch (e.g., what happens if you miss a night).

Why Do We Count Upwards?

The Sefer HaChinuch: Counting the Omer is preparation for Shavuot — just like someone counting down to an exciting event.

The obvious question: If we're excited about Shavuot, shouldn't we count downwards? "49 days to go, 48 days to go..."

The answer: Counting downward means the days in between have no intrinsic value — you're just letting time pass. Counting **upward** (1, 2, 3...) shows that each day has its own value. You're not waiting for Shavuot passively — you're actively building toward it, making each day count.

Analogy: An employer says: "Work for 100 days and earn £100,000 — £1,000 per day, but you have to show up." The employee comes home each night and says: "One day done — £1,000 earned. Two days — £2,000." He counts upward because each day represents real, earned value. Counting "99 days left" would miss the point — you have to do the work.

In Kabbalistic literature: This period between Pesach and Shavuot is the greatest time of the year — even greater than Elul — for building one's spiritual identity.

Why No Shehecheyanu?

Two reasons given:

Reason 1 (based on the Rosh — de-rabbanan): Since the counting today is only a zecher (remembrance) of the Temple-era mitzvah, there is an element of sadness — we don't have the full mitzvah. This is also the origin of saying **"HaRachaman hu yachzir avodat Beit HaMikdash li-mekomah"** after counting — praying for the return of the Temple so the mitzvah can be fulfilled mi-de'oraita.

Reason 2: The counting is a hechsher mitzvah — a preparation for Shavuot. The Shehecheyanu we say on Shavuot night covers both the Chag and the completion of the 49-day count.

Important: The mitzvah itself is only the bracha and the counting. Not the Leshem Yichud before. Not the LaMenatzeach after. Just the bracha and the count.

"La-Omer" vs. "Ba-Omer"

We say **"la-Omer"** (to/from the Omer) — not "ba-Omer" (in the Omer).

Why? We're counting **from** when the Omer sacrifice was brought. We're not counting within a period called "the Omer." The correct way: "Hayom achad asar yom **la-Omer**" — 11 days from the Omer.

This is why the correct Sephardi term is **Lag la-Omer** (the 33rd from the Omer), not "Lag ba-Omer."

The Ashkenazi text "ba-Omer" treats the Omer as a period of time. The Sephardi text "la-Omer" preserves the original meaning — counting from the Omer sacrifice.

Siman 489 — Seder Tefillat Leil Sheni Shel Pesach u-Sefirat HaOmer

Contains 10 Se'ifim

Se'if 1 — When to Count

Shulchan Aruch: On the second night of Pesach, after Arvit, we begin counting the Omer.

After Arvit — Ashkenazi vs. Sephardi Practice

Ashkenazim	Sephardim
Count immediately after the Amidah, **before** Aleinu LeShabeach	Count after the full Arvit service

Ashkenazi reasoning: Arvit technically ends at the Amidah. Aleinu is an addition. Counting immediately shows the urgency of doing the mitzvah at the beginning of the night.

Some held: You should count even **before** Arvit — because the mitzvah of counting at the start of the night might override the usual rule of tadir ve-she'eino tadir, tadir kodem (regular mitzvot come first).

Practical Ruling

Scenario	What to Do
Praying Arvit at or near nightfall	Pray Arvit first, then count
Praying Arvit significantly later (10:00, 10:30, 11:00 PM)	Count the Omer at the beginning of the night, pray Arvit later
Community praying after sunset but before nightfall (common in England)	Count with the community after sunset — this is valid

Why count at the beginning of the night? The Torah says "sheva shabbatot **temimot** tiheyenah" — seven **complete** weeks. The Gemara derives: counting must be at night (for completeness). The Rishonim extended this: it should be at the **beginning** of the night — as tamim (complete/wholesome) as possible.

Is counting with a minyan better than counting on time? No. No one holds that counting together with a minyan trumps counting at the proper time. The tiny hidur of counting with a community does not override the importance of counting at the beginning of the night.

Community Practice

In England, where nightfall in this season can be 9:00–9:30 PM, the practical guidance:

- **In a community setting:** Count after sunset (valid le-chatchila for a de-rabbanan mitzvah). People are there, they'll remember, it's worthwhile.
- **If counting individually and not concerned about forgetting:** Try to wait until nightfall.

Women and Sefirat HaOmer

Status: Sefirat HaOmer is a mitzvat aseh she-ha-zeman geramah (time-bound positive commandment) — because it must be done at night. Therefore, women are **exempt**.

Can women count with a bracha?

Ashkenazi ruling	Sephardi ruling
Generally yes — women can take on a mitzvah and say the bracha (same as lulav, shofar, sukkah)	Generally no — how can you say "ve-tzivanu" (and commanded us) when you weren't commanded?

The Chida notes: Many Sephardi communities (e.g., Iraq) did have women say the bracha on mitzvot like lulav. But the general Sephardi halacha follows the Shulchan Aruch — no bracha.

Magen Avraham — even for Ashkenazim, two concerns:

1. **Women may not understand the count:** There's a unique din in Sefirat HaOmer — unlike other mitzvot, you must **understand what you're counting**. With Shema, saying it in Hebrew fulfills the mitzvah even without comprehension. With Omer, comprehension is essential — because the essence of counting is knowing what you're counting.

2. **Women may forget to count consistently:** If you know you won't count every night throughout the seven weeks, there's an opinion you shouldn't start with a bracha at all.

In practice:

Group	Practice
Ashkenazi women	Most count. Some with a bracha, some without.
Sephardi women	Count without a bracha (general practice).
Ben Ish Chai	Women shouldn't count at all (Kabbalistic reasons) — but this is not the accepted practice.

Why We Don't Count Twice Each Night (The Double-Counting Question)

Outside of Israel we keep two days Chag because of calendrical doubt. Logically, each night of the Omer we should count twice — once assuming Pesach was the first night, once assuming it was the second night. On Shavuot night we should still be counting (49th day if Pesach was the second night).

Why don't we? A count that isn't clear and precise **isn't a count at all**. If I say "tonight is 11 days — or maybe 10 days," I haven't counted anything. The essence of counting requires certainty. Double-counting would undermine the entire mitzvah.

Principle: We only observe the calendrical doubt (two days Chag) when it doesn't impose on any other mitzvah. When it would impair another mitzvah — like making the counting meaningless — we don't do it.

This is also why you must understand what you're saying: If you count in Hebrew but don't know what "achad asar" means, you haven't counted. Count in English if needed: "Today is 11 days of the Omer, which is one week and four days." With the bracha. Perfectly valid.

Se'if 2 – Counting Before Nightfall / On a Cloudy Day

Shulchan Aruch: If it was a cloudy day (no clocks in those times), and a person counted thinking it was already night — but it was actually still before sunset — he must **repeat** the counting when it gets dark. "U-medakdekim einam sofrim ad tzeit ha-kochavim" — people who are precise don't count until nightfall. "Ve-chein na'og la'asot" — and so is the correct practice.

Understanding the Three Time Windows

Time	Status for Counting
Before Plag HaMincha (~1.25 halachic hours before sunset)	Counting is meaningless — too early for any nighttime mitzvah
After Plag HaMincha, before sunset	Some communities counted here (out of concern people would forget). Valid only with specific caveats (see below).
After sunset, before nightfall (bein ha-shmashot)	Valid le-chatchila — me'ikar ha-din, since Omer is de-rabbanan
After nightfall (tzeit ha-kochavim)	The **best** practice — fulfills even the Rambam's de'oraita standard

What the Shulchan Aruch is describing: A case where someone counted after Plag HaMincha but before sunset — thinking it was already dark (cloudy day). He must repeat.

Communities That Counted After Plag HaMincha

Some communities in the northern hemisphere counted after Plag HaMincha because nightfall was very late and they feared people would forget.

If you find yourself in such a community:

- Count **without a bracha** with them.
- Have in mind explicitly: "I don't intend to fulfill the mitzvah with this counting" (ein ani mitkaven latzeit).
- Later, when night actually falls — count again **with a bracha**.

General principle: You can say the Omer count at any time without it "counting" — if you explicitly have in mind that you're not fulfilling the mitzvah. This is because kavana (intention) is required for fulfillment.

What Medakdekim Means

The Shulchan Aruch says "medakdekim" (precise people) wait until nightfall. This is **not** saying that counting after sunset is be-di'avad. Rather:

- **Me'ikar ha-din:** Counting from sunset is fully valid le-chatchila (since it's de-rabbanan).
- **Medakdekim:** To accommodate the Rambam who holds it's de'oraita, precise people wait until nightfall.
- **Both are le-chatchila** — one is just more precise than the other.

Summary of Key Points

Topic	Key Ruling
De'oraita or de-rabbanan?	De-rabbanan nowadays (Shulchan Aruch). Rambam: de'oraita.
When to count	After Arvit. If Arvit is very late — count at beginning of the night first.
Earliest valid time	After sunset (me'ikar ha-din). Medakdekim: after nightfall. Before Plag: meaningless.
Community practice	Count after sunset together — valid, practical.
Individual practice	Try to wait until nightfall if possible.
Women	Exempt. Sephardim: count without bracha. Ashkenazim: divided — some with bracha, some without.
Language	Must understand what you're counting. If you don't understand Hebrew numbers: count in English.
La-Omer vs. Ba-Omer	Sephardim: la-Omer (from the Omer). Ashkenazim: ba-Omer (in the Omer).
Double counting	Not done — would undermine the clarity required for counting.
Why count upward?	Each day has intrinsic value. You're building, not just waiting.
Why no Shehecheyanu?	(1) Nowadays it's only a remembrance, with sadness. (2) Shehecheyanu on Shavuot covers it.

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